ATTORNEY OR PARTY WITHOUT ATTORNEY: STATE BAR NO:
NAME: Brendan Ngwa Nforbi
FIRM NAME:
STREET ADDRESS: 1455 Cat Tail Drive
CITY: Stockton STATE: CA ZIP CODE: 95204
TELEPHONE NO.: FAX NO.:
E-MAIL ADDRESS: bnn.cdl@gmail.com
ATTORNEY FOR (*name*):

FOR COURT USE ONLY

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN JOAQUIN
STREET ADDRESS: 180 E. Weber Avenue
MAILING ADDRESS: 180 E. Weber Avenue
CITY AND ZIP CODE: Stockton, CA 95202
BRANCH NAME: Stockton Courthouse

Plaintiff/Petitioner: BRENDAN NGWA NFORBI
Defendant/Respondent: ALPINE TRUCK SALES, INC., a California corporation

REQUEST FOR (Application) ☒ **Entry of Default** ☐ **Clerk's Judgment** ☒ **Court Judgment**

CASE NUMBER: STK-CV-UF-2026-1094

Not for use in actions under the Fair Debt Buying Practices Act (Civ. Code, § 1788.50 et seq.); (see form CIV-105)

1. TO THE CLERK: On the complaint or cross-complaint filed
   a. on *(date):*
   b. by *(name):*
   c. ☐ Enter default of defendant *(names):*

   d. ☒ I request a court judgment under Code of Civil Procedure sections 585(b), 585(c), 989, etc., against defendant *(names):*
   ALPINE TRUCK SALES, INC., a California corporation
   (Testimony required. Apply to the clerk for a hearing date, unless the court will enter a judgment on an affidavit under Code Civ. Proc., § 585(d).)
   e. ☐ Enter clerk's judgment
      (1) ☐ for restitution of the premises only and issue a writ of execution on the judgment. Code of Civil Procedure section 1174(c) does not apply. (Code Civ. Proc., § 1169.)
         ☐ Include in the judgment all tenants, subtenants, named claimants, and other occupants of the premises. The *Prejudgment Claim of Right to Possession* was served in compliance with Code of Civil Procedure section 415.46.
      (2) ☐ under Code of Civil Procedure section 585(a). *(Complete the declaration under Code Civ. Proc., § 585.5 on the reverse (item 5).)*
      (3) ☐ for default previously entered on *(date):*

2. **Judgment to be entered.**

	Amount	Credits acknowledged	Balance
a. Demand of complaint	$	$	$
b. Statement of damages*			
(1) Special	$	$	$
(2) General	$	$	$
c. Interest	$	$	$
d. Costs *(see reverse)*	$	$	$
e. Attorney fees	$	$	$
f. **TOTALS**	$	$	$

   g. **Daily damages** were demanded in complaint at the rate of: $ per day beginning *(date):*
   (Personal injury or wrongful death actions; Code Civ. Proc., § 425.11.)*

3. ☐ *(Check if filed in an unlawful detainer case.)* **Legal document assistant or unlawful detainer assistant** information is on the reverse *(complete item 4).*

Date: 08/01/2026

Brendan Ngwa Nforbi
(TYPE OR PRINT NAME)

▶ _____
(SIGNATURE OF PLAINTIFF OR ATTORNEY FOR PLAINTIFF)

FOR COURT USE ONLY
(1) ☐ Default entered as requested on *(date):*
(2) ☐ Default NOT entered as requested *(state reason):*
Clerk, by _____, Deputy

Form Adopted for Mandatory Use
Judicial Council of California
CIV-100 [Rev. January 1, 2023]

REQUEST FOR ENTRY OF DEFAULT
(Application to Enter Default)

Code of Civil Procedure, §§ 585–587, 1169
www.courts.ca.gov

Plaintiff/Petitioner: **BRENDAN NGWA NFORBI** Defendant/Respondent: **ALPINE TRUCK SALES, INC., a California corporation**	CASE NUMBER: **STK-CV-UF-2026-1094**

4. **Legal document assistant or unlawful detainer assistant (Bus. & Prof. Code, § 6400 et seq.).** A legal document assistant or unlawful detainer assistant ☐ did ☐ did **not** for compensation give advice or assistance with this form. If declarant has received **any** help or advice for pay from a legal document assistant or unlawful detainer assistant, state:
   a. Assistant's name:
   b. Street address, city, and zip code:
   c. Telephone no.:
   d. County of registration:
   e. Registration no.:
   f. Expires on *(date):*

5. ☒ **Declaration under Code Civ. Proc., § 585.5** *(for entry of default under Code Civ. Proc., § 585(a)).* This action
   a. ☐ is ☒ is not on a contract or installment sale for goods or services subject to Civ. Code, § 1801 et seq. (Unruh Act).
   b. ☐ is ☒ is not on a conditional sales contract subject to Civ. Code, § 2981 et seq. (Rees-Levering Motor Vehicle Sales and Finance Act).
   c. ☐ is ☒ is not on an obligation for goods, services, loans, or extensions of credit subject to Code Civ. Proc., § 395(b).

6. **Declaration of mailing (Code Civ. Proc., § 587).** A copy of this *Request for Entry of Default* was
   a. ☐ **not mailed** to the following defendants, whose addresses are unknown to plaintiff or plaintiff's attorney *(names):*
   b. ☒ **mailed** first-class, postage prepaid, in a sealed envelope addressed to each defendant's attorney of record or, if none, to each defendant's last known address as follows:
      (1) Mailed on *(date):* August 1, 2026
      (2) To *(specify names and addresses shown on the envelopes):*
      Mustagem Usmani
      1201 S. Sonderquist Road
      Turlock. CA 95380

I declare under penalty of perjury under the laws of the State of California that the foregoing items 4, 5, and 6 are true and correct.

Date: 08/01/2026

Brendan Ngwa Nforbi
(TYPE OR PRINT NAME)

▶ _____
(SIGNATURE OF DECLARANT)

7. **Memorandum of costs** *(required if money judgment requested).* Costs and disbursements are as follows (Code Civ. Proc., § 1033.5):
   a. Clerk's filing fees . . . . . $
   b. Process server's fees . . . . . $
   c. Other *(specify):* $
   d. $
   e. **TOTAL** . . . . . $ _____
   f. ☒ Costs and disbursements are waived.
   g. I am the attorney, agent, or party who claims these costs. To the best of my knowledge and belief this memorandum of costs is correct and these costs were necessarily incurred in this case.

I declare under penalty of perjury under the laws of the State of California that the foregoing item 7 is true and correct.

Date: 08/01/2026

Brendan Ngwa Nforbi
(TYPE OR PRINT NAME)

▶ _____
(SIGNATURE OF DECLARANT)

Plaintiff/Petitioner: **BRENDAN NGWA NFORBI** Defendant/Respondent: **ALPINE TRUCK SALES, INC., a California corporation**	CASE NUMBER: **STK-CV-UF-2026-1094**

8. **Declaration of nonmilitary status** *(required for a judgment).*
No defendant/respondent named in item 1c is in the military service of the United States as defined by either the Servicemembers Civil Relief Act (see 50 U.S.C. § 3911(2)) or California Military and Veterans Code sections 400 and 402(f).

I know that no defendant/respondent named in item 1c is in the U.S. military service because *(check all that apply)*:

a. ☐ the search results that I received from *https://scra.dmdc.osd.mil/* say the defendant/respondent is not in the U.S. military service.
b. ☐ I am in regular communication with the defendant/respondent and know that they are not in the U.S. military service.
c. ☐ I recently contacted the defendant/respondent, and they told me that they are not in the U.S. military service.
d. ☐ I know that the defendant/respondent was discharged from U.S. military service on or about *(date):*
e. ☒ the defendant/respondent is not eligible to serve in the U.S. military because they are:
   ☐ incarcerated ☒ a business entity
f. ☐ other *(specify):*

Note

- U.S. military status can be checked online at *https://scra.dmdc.osd.mil/*.
- If the defendant/respondent is in the military service, or their military status is unknown, the defendant/respondent is entitled to certain rights and protections under federal and state law before a default judgment can be entered.
- For more information, see *https://selfhelp.courts.ca.gov/military-defaults*.

I declare under penalty of perjury under the laws of the State of California that the foregoing item 8 is true and correct.

Date: 08/01/2026

Brendan Ngwa Nforbi
(TYPE OR PRINT NAME)

(SIGNATURE OF DECLARANT)

For your protection and privacy, please press the Clear button after you have printed the form.

Print Save Clear

BRENDAN NGWA NFORBI

Plaintiff In Pro Per

1455 Cat Tail Drive

Stockton, CA 95204

Telephone: (209) 801-4442

E-mail: bnn.cdl@gmail.com

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN JOAQUIN

BRENDAN NGWA NFORBI, Plaintiff, v. **ALPINE TRUCK SALES, INC.,** a California corporation; and DOES 1 through 20, inclusive, Defendants.	Case No. STK-CV-UF-2026-0001094 **DECLARATION OF BRENDAN NGWA NFORBI IN SUPPORT OF REQUEST FOR DEFAULT JUDGMENT AGAINST ALPINE TRUCK SALES, INC.** *(Cal. Rules of Court, rule 3.1800; Code Civ. Proc. section 585(b))*

Assigned to: Hon. Robert T. Waters, Dept. 11B

CMC: August 12, 2026

[Date Executed: August 1, 2026]

DECLARATION OF BRENDAN NGWA NFORBI IN SUPPORT OF REQUEST FOR DEFAULT JUDGMENT AGAINST ALPINE TRUCK SALES, INC.

(Cal. Rules of Court, rule 3.1800)

I, BRENDAN NGWA NFORBI, declare:

I. PRELIMINARY STATEMENT

1. I am the Plaintiff in the above-entitled action and am over eighteen years of age. The matters set forth herein are within my personal knowledge unless stated on information and belief, and if called as a witness, I could and would competently testify to them. I submit this Declaration in support of my Request for Entry of Default Judgment by the Court (Judicial Council Form CIV-100) against Defendant ALPINE TRUCK SALES, INC. ("Alpine"), pursuant to Code of Civil Procedure section 585, subdivision (b), and California Rules of Court, rule 3.1800.

2. This Declaration is submitted together with the following companion documents constituting my prove-up package as to Alpine: (a) Plaintiff's Request for Entry of Default and Court Judgment (Form CIV-100); (b) this Declaration; and (c) the documentary exhibits and prior prove-up record already on file with the Court in connection with the default judgment previously requested against co-defendant Diamond Truck Sales, Inc. ("Diamond"), which are incorporated herein by reference.

II. PROCEDURAL POSTURE

3. The operative pleading in this action is the First Amended Complaint ("FAC"), which names Alpine as a defendant on the theory that Alpine is Diamond's successor in interest, mere continuation, de facto merger, and/or alter ego, and/or a participant in a fraudulent transfer under the Uniform Voidable Transactions Act (Civ. Code section 3439 et seq.).

4. Alpine was personally served with the Amended Summons, the First Amended Complaint, and the Notice of Case Assignment and Notice of Hearing on July 1, 2026, at 9:00 a.m., by delivery to Mustaqem Usmani, Manager, at 1201 S Soderquist Road, Turlock, California 95380, by San

Joaquin County Sheriff's Deputy T. Caldwell, under Code of Civil Procedure section 416.10. Proof of Service (Form POS-010, Levying Officer File No. 2026002577) was signed July 2, 2026 by the Sheriff's Authorized Agent and is on file with this Court.

5. Alpine's deadline to respond to the FAC expired thirty (30) days after service, on July 31, 2026. Alpine filed no responsive pleading, demurrer, or other appearance, and no meet-and-confer contact was received from Alpine at any time before or after that deadline. I have submitted a Request for Entry of Default (Form CIV-100) against Alpine, and the Court has entered, or will shortly enter, Alpine's default as reflected in the Court's file.

6. Because Alpine has defaulted, the well-pleaded factual allegations of the FAC concerning Alpine's liability are deemed admitted. (Steven M. Garber & Assocs. v. Eskandarian (2007) 150 Cal.App.4th 813, 823; Kim v. Westmoore Partners, Inc. (2011) 201 Cal.App.4th 267, 281.) The well-pleaded allegations include, without limitation: that Diamond rebranded to Alpine during the pendency of this action; that Alpine has operated from the same locations as Diamond, including 1201 S Soderquist Road, Turlock, California, under the same Osmani family ownership and management; and that Alpine is therefore liable for Diamond's obligations in this action as its successor in interest, mere continuation, de facto merger, and/or alter ego, and/or by reason of a fraudulent transfer of Diamond's business and assets to Alpine.

7. This Declaration addresses only the amount and proof of damages as against Alpine. I have made no effort to relitigate liability, which is deemed established by the default, nor to relitigate the underlying fraud and misrepresentation claims against Diamond, which were proved up separately in the default judgment package previously submitted as to Diamond.

III. SUCCESSOR LIABILITY IS DERIVATIVE, NOT ADDITIONAL

8. Alpine's liability in this action is derivative of Diamond's liability. Alpine is not sued for

independently committing fraud, misrepresentation, or breach of contract in the underlying vehicle sale transaction; rather, Alpine is sued as the entity that has, by operation of the successor-liability and alter-ego doctrines pleaded in the FAC, become answerable for the single judgment obligation that Diamond itself already owes to Plaintiff by reason of Diamond's own default.

9. Accordingly, Plaintiff does NOT seek, and this Declaration does NOT request, an additional or duplicative award of damages against Alpine on top of the judgment sought against Diamond. Plaintiff instead requests that judgment be entered against Alpine in the same total amount requested against Diamond, on a joint and several basis, so that Plaintiff may recover the single judgment sum from either or both defendants, without any double recovery.

IV. DAMAGES (SAME SUM AS THE DIAMOND JUDGMENT)

10. The itemized calculation of damages is set forth in full in the Declaration in Support of Request for Default Judgment previously filed against Diamond, and in Attachment 4b to Plaintiff's Case Management Statement (Form CM-110) filed July 20, 2026, both of which are incorporated herein by reference. In summary: documented out-of-pocket losses of $20,218.65; additional sworn, undocumented out-of-pocket losses of $5,750.00; conservatively calculated lost commercial income of $23,400.00 (18 weeks x $1,300/week); and prejudgment interest under Civil Code section 3287(a) (7%, approximately 3.04 years) of $4,302.55 -- for a compensatory subtotal of $53,671.20.

11. Plaintiff additionally requests punitive damages of $25,000.00 under Civil Code section 3294, based on the well-pleaded and, as to Diamond, now-admitted allegations that Diamond's concealment of the DEF/SCR emissions defect was intentional, malicious, fraudulent, and oppressive. Because Alpine's liability for this sum is derivative of Diamond's own default and admitted misconduct, Plaintiff requests that the same punitive damages figure be included in the judgment against Alpine on the same joint and several basis, not as a separate punitive award against Alpine for independent conduct of its own.

12. The resulting total default judgment amount requested -- as against Diamond, and, jointly and severally on the same sum, as against Alpine -- is not less than $78,671.20, plus costs of suit as separately itemized and, per the accompanying CIV-100, waived pursuant to Plaintiff's approved fee waiver.

V. CONCLUSION

13. For the foregoing reasons, Plaintiff respectfully requests that the Court enter default judgment against Defendant ALPINE TRUCK SALES, INC. in the amount of not less than $78,671.20, jointly and severally with the default judgment sought against Diamond Truck Sales, Inc., plus costs of suit as allowed by law.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on August 1, 2026, at Stockton, California.

_____

BRENDAN NGWA NFORBI

Plaintiff, In Pro Per